

[*162] * (III.) **Exceptions from the foregoing rules.**—But even in the case of charity, if the settlor do not give the land, or the whole rents of the land, but, noticing the property to be of a certain value, appropriates part only to the charity, the residue will then, according to the circumstances of the case, either result to the heir-at-law (*a*), or will belong to the donee of the property subject to the charge, if the donee be (as in the case of a charitable corporation) itself an object of charity (*b*).

The doctrine in favour of charities established before trusts were settled.—The exceptions we have noticed were established at an early period, when the doctrine of resulting trusts was imperfectly understood (*c*). The interest of the heir was shut entirely out of sight, and the question was viewed as between the charity and the trustee (*d*). Were the subject still unprejudiced by authority, there is little doubt but the Court would, at the present day, follow the general principle, and hold a trust to result (*e*).

SECTION II.

OF RESULTING TRUSTS UPON PURCHASES IN THE NAMES OF THIRD PERSONS.

Purchases of this kind are governed by different rules, according to the relation which subsists at the time between

dlers' Company, 6 L. R. H. L. 1; and see *Attorney-General v. Smythies*, 2 R. & M. 717; *Attorney-General v. Drapers' Company*, 6 Beav. 382; *Attorney-General v. Jesus College*, 29 Beav. 163. The additional benefit is not always distributed amongst the different objects of the charity ratably, but the Court exercises a discretion as to the proportions, *Attorney-General v. Marchant*, 3 L. R. Eq. 424.

(*a*) See *Attorney-General v. Mayor of Bristol*, 2 J. & W. 308.

(*b*) *Attorney-General v. Beverley*, 6 H. L. Cas. 310; *Attorney-General v. Southmolton*, 5 H. L. Cas. 1; *Attorney-General v. Trinity College*, 24 Beav. 383; *Attorney-General v. Dean of Windsor*, 24 Beav. 679; affirmed

in D. P. 8 H. L. Cas. 369; *Attorney-General v. Sidney Sussex College*, 4 L. R. Ch. App. 722; *Attorney-General v. Wax Chandlers' Company*, 8 L. R. Eq. 452; 5 L. R. Ch. App. 503; 6 L. R. H. L. 1; and see *Attorney-General v. Mercers' Company*, 22 L. T. N. S. 222, 18 W. R. 448; *Merchant Taylors' Company v. Attorney-General*, 11 L. R. Eq. 35; affirmed, 6 L. R. Ch. App. 512.

(*c*) *Attorney-General v. Johnson*, Amb. 190, *per* Lord Hardwicke; *Attorney-General v. Mayor of Bristol*, 2 J. & W. 307, *per* Lord Eldon.

(*d*) See *Thetford School case*, 8 Rep. 130.

(*e*) See *Attorney-General v. Mayor of Bristol*, 2 J. & W. 307.